Changes to legislation: As of 4 April 2022, this Act is up to date with all changes known to be in force.

Number 23 *of* 2007

HEALTH ACT 2007

REVISED

Updated to 8 January 2019

This Revised Act is an administrative consolidation of the *Health Act 2007*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Central Bank (National Claims Information Database) Act 2018* (42/2018), enacted 27 December 2018, and all statutory instruments up to and including *Consumer Protection (Regulation of Credit Servicing Firms) Act 2018 (Commencement) Order 2019* (S.I. No. 3 of 2019), made 15 January 2019, were considered in the preparation of this Revised Act.

Disclaimer: While every care has been taken in the preparation of this Revised Act, the Law Reform Commission can assume no responsibility for and give no guarantees, undertakings or warranties concerning the accuracy, completeness or up to date nature of the information provided and does not accept any liability whatsoever arising from any errors or omissions. Please notify any errors, omissions and comments by email to revisedacts@lawreform.ie.

Number 23 *of* 2007

HEALTH ACT 2007

REVISED

Updated to 8 January 2019

AN ACT TO ESTABLISH A BODY TO BE KNOWN AS AN tÚDARÁS UM FHAISNÉIS AGUS CÁILÍOCHT SLÁINTE OR, IN THE ENGLISH LANGUAGE, AS THE HEALTH INFORMATION AND QUALITY AUTHORITY AND OIFIG AN PHRÍOMH-CHIGIRE SEIRBHÍSÍ SÓISIALACHA OR, IN THE ENGLISH LANGUAGE, THE OFFICE OF THE CHIEF INSPECTOR OF SOCIAL SERVICES AND TO PROVIDE FOR THE DISSOLUTION OF CERTAIN BODIES; TO PROVIDE FOR THE TRANSFER OF THE FUNCTIONS OF THE DISSOLVED BODIES AND THEIR EMPLOYEES TO THE HEALTH INFORMATION AND QUALITY AUTHORITY; TO PROVIDE FOR A SCHEME OF REGISTRATION AND INSPECTION OF RESIDENTIAL SERVICES FOR OLDER PEOPLE, PERSONS WITH DISABILITIES AND CHILDREN IN NEED OF CARE AND PROTECTION; TO PROVIDE FOR THE REPEAL AND AMENDMENT OF CERTAIN OTHER ACTS; AND TO PROVIDE FOR RELATED MATTERS.

[21*st April*, 2007]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART 1

Preliminary Matters

Short title, collective citation and construction.

1.— (1) This Act may be cited as the Health Act 2007.

(2) The Health Acts 1947 to 2006, this Act and the Health (Nursing Homes) (Amendment) Act 2007 may be cited together as the Health Acts 1947 to 2007 and shall be construed together asone.

Interpretation.

2.— (1) In this Act:

F1**[** 'Agency' means the Child and Family Agency established under the Child and Family Agency Act 2013;**]**

"Authority" means the Health Information and Quality Authority established under *section 6*;

"Board" means the Board, referred to in *section 13*, of the Authority;

Item	Provision affected	Amendment
		the time being required for the purposes of making payments out of the Fund pursuant to subsection (1)) subject to such conditions as the Executive and the Agency may agree to from time to time, (*b*) may amend or revoke a request referred to in paragraph (*a*) (but without prejudice to the validity of any act done pursuant to the request before the amendment or revocation, as the case may be). (14) The Agency shall, by virtue of this subsection, have all such powers as are necessary for or incidental to the carrying out of a request referred to in subsection (13)(*a*).".

Number 23 *of* 2007

HEALTH ACT 2007

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Introduction

This Revised Act presents the text of the Act as it has been amended since enactment, and preserves the format in which it was passed.

Related legislation

Health Acts 1947 to 2018: this Act is one of a group of Acts included in this collective citation, to be construed together as one (*Health (General Practitioner Service) Act 2018* (13/2018), s. 5(2)). The Acts in this group are:

- *Health Act 1947* (28/1947)
- *Health Act 1953* (26/1953) (citation only)
- *Health (Fluoridation of Water Supplies) Act 1960* (46/1960) (citation only)
- *Health Act 1970* (1/1970)
- *Misuse of Drugs Act 1977* (12/1977), s. 36 and s. 42 in so far as it amends the *Health Acts 1947 to 1970* (citation only)
- *Health (Family Planning) Act 1979* (20/1979)
- *Health (Amendment) Act 1986* (10/1986)
- *Health (Amendment) Act 1987* (3/1987)
- *Health (Nursing Homes) Act 1990* (23/1990)
- *Health (Amendment) Act 1991* (15/1991), other than s. 8
- *Health (Amendment) Act 1994* (11/1994)
- *Health (Amendment) Act 1996* (15/1996)
- *Health (Amendment) (No. 2) Act 1996* (23/1996)
- *Health (Amendment) (No. 3) Act 1996* (32/1996), other than ss. 21 and 22
- *Health (Provision of Information) Act 1997* (9/1997)
- *Health (Eastern Regional Health Authority) Act 1999* (13/1999)
- *Health (Miscellaneous Provisions) Act 2001* (14/2001), except in so far as it relates to the *Tobacco (Health Promotion and Protection) Act 1988* (citation only)
- *Health Act 2004* (42/2004)
- *Health (Amendment) Act 2005* (3/2005), in so far as it amends the *Health Acts 1947 to 2004*
- *Irish Medicines Board (Miscellaneous Provisions) Act 2006* (3/2006), Part 5
- *Health (Repayment Scheme) Act 2006* (17/2006)
- *Hepatitis C Compensation Tribunal (Amendment) Act 2006* (22/2006), except s. 6
- *Health (Nursing Homes) (Amendment) Act 2007* (1/2007)
- *Health Act 2007* (23/2007)
- *Medical Practitioners Act 2007* (25/2007), s. 57(9) (citation only)
- *Health Act 2008* (21/2008)